

SERIES

Peace and rearmament

All the pieces in the series in a single document, in reading order. Updated 8 November 2026.

How Europe responds to threats: how fast it arms, how slowly it negotiates, and who pays. It starts with the supermarket freezers tampered with remotely on 2 November, to separate facts from suspicion. Then two Analyses: the bill for rearmament, meaning which rules were changed for weapons and not for public services, and the limits of self-defence, with Ukraine's strikes inside Russia examined case by case. It closes with a signed Opinion on the asymmetry between defence and diplomacy.

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Freezers at 50 degrees: who attacked Europe's supermarkets, and what we really know

IN BRIEF

- On the night of 1 to 2 November cyberattacks tampered with the refrigeration systems of supermarkets in at least eleven European countries, Italy included. In many cases freezers were pushed to 50 degrees. Tonnes of food were thrown away.
- It repeated an attack carried out in France on 12 October. In both cases the target was remote-control software, partly outdated and exposed online without adequate protection.
- On 4 November two pro-Russian groups, NoName057(16) and Z-Pentest, claimed the attacks on Telegram. The messages were later deleted and nobody has verified them independently.
- In 2025 the United States and Denmark had already pointed to links between these groups and the Russian state; according to the American indictment, Z-Pentest is another name for a group directed by Russian military intelligence. For the attacks on the fridges, however, no authority has published evidence of state direction. The Kremlin denies it.
- Under international law the difference is decisive: a state is responsible for what its organs do, or those acting under its control, not for what sympathisers do. But it also has a duty not to let its territory be used to harm others.

A supermarket fridge is an ordinary object. It becomes less ordinary when you discover that, to make it go haywire, you do not need to enter the shop: you only need to find online the panel that controls it. On the night of 2 November someone did this in hundreds of stores, from Dublin to Bucharest. Who did it is the question on which, within a few days, an entire political reading was built. This piece tries to separate what we know from what is being said.

THE FACTS

France, 12 October. The first attack in this series hit several hundred French supermarkets. Police counted about 700 refrigeration units tampered with, in chains such as Intermarché, Coopérative U, Carrefour, Leclerc and Monoprix, with damage above 130,000 euros (GreenMe). The attackers had exploited old versions of Danfoss software for remote monitoring of the

systems (Informat.ro). According to an expert quoted by CNN, more than 1,700 installations of that software were visible online before the attack (QN).

Europe, 2 November. Three weeks later the same technique was repeated on a continental scale. The attackers switched the evaporators of fridges and freezers into defrost mode, pushing temperatures up to 50 degrees (Teleborsa; Cybernews). At least eleven countries were hit (Euronews); other sources count twelve, including Belgium, the Netherlands, Sweden, Estonia, Ireland, Germany, Romania and Portugal (RetailDetail). In Ireland the SuperValu chain pulled products from 13 stores; in Belgium Carrefour spoke of about 15 outlets out of 700 (Cybernews; TweakTown).

Italy. Attacks were recorded in Sicily, at least three stores in Catania and one in Palermo, as well as in Tuscany and Emilia-Romagna, where the National Cybersecurity Agency identified one against a frozen-food company (Open). On 3 November the government convened the Agency and the heads of the intelligence services at Palazzo Chigi; the final statement spoke of a limited impact on the distribution chain (ItaliaOggi).

The investigations. In Belgium prosecutors opened a criminal investigation (Al Jazeera). The European Commission convened agencies and national authorities, but did not attribute the attacks to any state or group (Informat.ro). Agriculture Commissioner Christophe Hansen called them a deliberate attempt to hit the food supply chain (Informat.ro).

WHO DID IT: THREE LEVELS NOT TO CONFUSE

1. The claim. On 4 November NoName057(16) and Z-Pentest jointly claimed the attacks, with a video and some Telegram messages that were later deleted. NoName057(16) also reportedly published a sample of more than 2,500 lines with usernames and passwords of Danfoss employees and customers. Nobody has verified it. A researcher quoted by Cybernews doubts that the groups actually breached the systems, rather than taking credit after the media had named them as suspects (Cybernews). According to Agenda Digitale, the statement contains no exclusive technical data that only the perpetrators could know (Agenda Digitale).

2. The groups' links to Moscow. Here there is evidence, but it concerns the past. On 9 December 2025 the US Department of Justice brought charges describing the Russian government's support for NoName057(16) and for another group, Cyber Army of Russia Reborn, which according to the indictment also uses the name Z-Pentest and was founded, funded and directed by Russian military intelligence, the GRU (Kyiv Independent). A few days later Denmark attributed to Z-Pentest a 2024 attack on a water treatment plant. According to the security firm Forescout, since the start of 2026 Russia-based groups have claimed at least 20 attacks on

refrigeration systems (Pillitteri, summarising the DOJ, the Danish government and Forescout). The suspicion, then, does not come from nowhere.

3. Direction by the Russian state. This is the unproven part. For the attacks on the fridges no authority has published evidence of state direction (same source). The Kremlin called the accusations "absurd" (AFP, via Macau Business). A Belgian expert said he was "95% sure" it was Russian sabotage (RetailDetail): that is a professional assessment, not proof.

The jump from the first level to the third is the one public debate made fastest. In Italy, for example, the government spoke of a Russian lead on 3 November, before any claim of responsibility (Pillitteri).

THE WEAK SPOT

Whoever the perpetrator, the door was open. According to security experts, about 13,000 refrigeration systems in Europe still run on outdated software with known vulnerabilities (dev.ua). Until this wave, nobody had thought these systems needed high-level cyber defences (QN). The countermeasures set out by the French agency CERT-FR are simple: take the systems off direct internet access, change default passwords, update the firmware, and reopen access only through a VPN (Pillitteri). On 4 November in France an attack of the same kind against the cold rooms of three blood storage centres was foiled (Liga.net).

LEGAL COMMENTARY

When an attack belongs to a state. Under international law a state is responsible for the actions of its organs and of persons or groups acting on its instructions, or under its direction or control (articles 4 and 8 of the International Law Commission's Articles on State Responsibility, 2001). In Nicaragua v. United States (1986) the International Court of Justice required "effective control" over the specific operations (ICJ). General support, or political sympathy, is not enough.

The duty of vigilance. There is, however, a second obligation. As early as 1949, in the Corfu Channel case, the Court held that no state may knowingly allow its territory to be used for acts contrary to the rights of other states (ICJ). If groups known to a country's authorities repeatedly hit another country's infrastructure, the state from which they operate has a duty to stop them, even if it does not direct them.

What kind of violation. Remotely damaging another country's civilian installations, with economic losses but without deaths or destruction comparable to military action, hardly reaches the threshold of an "armed attack" that allows self-defence (Article 51 of the UN Charter). It is closer to a violation of sovereignty or of the prohibition of intervention. The

permitted responses are therefore of another kind: investigations, diplomatic measures, sanctions. Since 2019 the EU has had a specific sanctions regime for cyberattacks.

SYMMETRY TEST

The same yardstick for evidence. If we demand public proof before attributing an attack to Moscow, the same demand applies to cyberattacks the press attributes to Western states, such as the Stuxnet virus against Iranian centrifuges, which the United States and Israel have never officially acknowledged.

The same night. In the same hours as the attacks on the fridges, the air-raid alert apps of Ukraine and Russia showed false nuclear alerts. Kyiv blamed Moscow; the Russian app had been hit too, and nobody claimed it (TweakTown). Cyber warfare does not have a single author.

The same yardstick for prevention. Those who ask Moscow to stop the groups operating from its territory must ask European operators to close the doors they leave open. The two responsibilities do not exclude each other.

OUR JUDGMENT

This section expresses the site's position. It is separate from the facts set out above.

The suspicion towards pro-Russian groups is well founded: they have a record, they boasted, and two Western governments have documented their links with the Russian state. But a well-founded suspicion is not proof, and the difference matters precisely because the political consequences are large. Authorities that speak of "hybrid war" should publish what they know, as Denmark did for the water plant.

In the meantime there is something that can be done without waiting for any attribution: update the software and take exposed panels off the network. It costs little, and it is the defence that would have prevented freezers at 50 degrees.

WHAT TO WATCH

- The investigations by Belgian prosecutors and national authorities: whether anyone publishes technical evidence about the perpetrator.
- Whether the Commission or the Council formally attributes the attacks, and whether they use the cyber sanctions regime.
- Verification of the sample of Danfoss credentials published by NoName057(16).
- New attacks against the cold rooms of hospitals, transfusion centres and food warehouses.

- The numbers: how many of the exposed systems are secured.

Sources: GreenMe · Informat.ro · QN · Teleborsa · Cybernews · Euronews · RetailDetail · TweakTown · Open · ItaliaOggi · Al Jazeera · Informat.ro · Cybernews · Agenda Digitale · Kyiv Independent · Pillitteri, summarising the DOJ, the Danish government and Forescout · AFP, via Macau Business · dev.ua · Liga.net · ICJ · ICJ

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The bill for rearmament: who pays, and under what rules

IN BRIEF

- At the NATO summit in The Hague (June 2025) the allies committed to spending 5% of GDP by 2035: at least 3.5% on defence proper, up to 1.5% on critical infrastructure, networks and civil protection.
- The figure was requested by Washington, which then threatened tariffs against the only government that held back, Spain's. The EU-US trade deal of July 2025 puts 15% tariffs and purchases of American weapons in the same package; according to the US ambassador to NATO, about half of the allies' new commitments concern weapons made in the United States.
- The European Union has created fast tools for defence: 150 billion in loans (SAFE), approved in about ten weeks through an emergency procedure that excludes the European Parliament; a derogation from the Stability Pact that allows a larger deficit, but only for defence (and, since June 2026, for part of energy spending); a 2028-2034 budget proposal that multiplies funds for defence and space by five.
- The same derogations do not exist for healthcare, education, justice or diplomacy. The share of the EU budget for conflict prevention has fallen, and a proposal under discussion would cut the instrument that funds it twice as much as the rest.
- Who has already paid: development aid in the United Kingdom and Belgium, civilian infrastructure in the United Kingdom, a public holiday in Denmark. In Italy the Parliamentary Budget Office warns that once the derogation ends, from 2029 the accounts get more complicated; the government says welfare will not be touched.
- Whether spending is "too much" depends on a comparison the numbers do not settle: measured in dollars, Europe spends almost three times as much as Russia; measured in purchasing power, the gap narrows sharply. The NATO declaration ties the 3.5% to the Alliance's capability targets, which are classified: no citizen can check whether the figure matches the needs.

The number that will decide European military spending over the next ten years was born in a negotiation. 5% of GDP is the figure demanded by the Trump administration and accepted by

the allies in The Hague, split into two items to make it bearable. NATO says the first item serves to meet its capability targets; those targets, however, are not public. So, in the debate, European governments do not explain what is needed: they explain how they will reach the percentage. This Analysis follows the money: where it comes from, which rules were changed to find it, and who risks losing it.

THE FACTS

The commitment. On 25 June 2025 the 32 allies signed a declaration committing them to spend by 2035 at least 3.5% of GDP on "core defence requirements" and up to 1.5% on protecting critical infrastructure, defending networks, and ensuring civil preparedness and resilience (LaPresse). The second item is less defined than the first, and we will come back to this.

The European tools. In March 2025 the Commission presented the ReArm Europe plan, later renamed Readiness 2030, aiming to mobilise more than 800 billion (European Commission). The first pillar, SAFE, offers up to 150 billion in loans for joint arms purchases (EU Council). The second is a derogation from budget rules, discussed below. In its proposal for the 2028-2034 budget the Commission foresees 131 billion for defence and space, five times more than today (Commission, via FastForward).

Actual spending. According to the Swedish institute SIPRI, in 2025 the 29 European members of NATO spent 559 billion dollars, and 22 of them exceeded 2% of GDP. Russia spent 190 billion, 7.5% of its GDP; Ukraine 84 billion, 40% of its own (SIPRI).

WHERE THE 5% COMES FROM

The pressure. The figure was requested by Washington, and accompanied by trade threats. In The Hague the only government that rejected the target was Spain's, which signed the declaration but committed to 2.1%, arguing that this was enough to meet the capabilities required by the Alliance without compromising social spending (La Notizia). The US president replied at a press conference that he would make Spain pay "twice as much" in the tariff deal (Sky TG24); in October he suggested expelling it from NATO (Open); at the Ankara summit, in July 2026, he said he no longer wanted to do business with Spain and asked his Treasury Secretary to "cut" (AFP, via Kuwait Times). On the eve of the same summit the administration did not rule out sanctions for allies lagging behind, tariffs included (Washington Examiner).

Weapons and trade in the same package. A month after The Hague, on 27 July 2025, the trade deal between the United States and the EU set 15% tariffs on most European goods and placed, next to energy purchases, the European intention to buy large quantities of American weapons

(Al Jazeera). According to the US ambassador to NATO, of the roughly 139 billion dollars in new commitments made by the allies after The Hague, about half concerns equipment, weapons and ammunition produced in the United States (Washington Examiner).

Not only Washington. It would be wrong, however, to tell the story of European rearmament as an order carried out. The ReArm Europe plan was presented in March 2025, three months before The Hague, partly out of fear that the United States would no longer defend Europe. Poland and the Baltic states had been calling for more spending for years, and the Estonian prime minister said that everyone, Spain included, should reach 5% (Euronews). American pressure set the figure and the timetable; fear of Russia, and of the United States, did the rest.

A RULE FOR WEAPONS, NONE FOR SERVICES

The derogation. The Stability Pact limits the growth of public spending in EU countries. On 19 March 2025 the Commission established that Russia's invasion of Ukraine is an "exceptional circumstance" that allows the national escape clause to be activated, and invited states to use it in a coordinated way (Osservatorio CPI). In practice a state can spend up to 1.5% of GDP more, for four years, without breaching the Pact, provided the money goes to defence (Italpress). By February 2026 seventeen states had been authorised (Eunews). On 8 October the Commission gave the green light to Italy too, for defence and, since this year, for part of its energy spending (Il Post).

What is missing. A similar derogation for healthcare, education, justice or the maintenance of civilian infrastructure does not exist. A government wanting to hire doctors or rebuild schools with the same deficit granted for weapons would break the rules. This is not an accusation: it is the text of the rules. The consequence, however, is that for the same need, military spending is the easiest to finance.

The procedure. The timing differs too. SAFE was proposed on 19 March 2025 and adopted on 27 May. To move fast the Commission chose Article 122 of the Treaty on the Functioning of the EU, an emergency clause that leaves the European Parliament out of the decision. Parliament asked the Court of Justice to annul the regulation, challenging not its content but its method (La Notizia); the case is pending.

WHO HAS ALREADY PAID

Development aid. In February 2025 the United Kingdom decided to bring defence to 2.5% of GDP by 2027, financing the increase by cutting development aid from 0.5% to 0.3% of GDP; the responsible minister resigned (LaPresse). Belgium cut its aid budget by 25% (Brussels Times).

Civilian infrastructure. In the plan presented on 30 June 2026, the British government also financed the defence increase by cutting civilian infrastructure projects, from roads to energy (laRegione).

Work. In 2023 Denmark abolished a religious holiday, Store Bededag, to raise about 400 million euros a year for defence; three Danes in four were against it (Il Post; Italian Chamber of Commerce in Denmark).

Conflict prevention. In the EU budget the share devoted to peacebuilding and conflict prevention has fallen since 2021 from 3.7% to 2.6% (FIIA). For 2028-2034 a proposal by the Irish presidency would cut the instrument that also funds peacebuilding, Global Europe, by almost 16%, twice the average cut (IRC).

The Italian case. Here there are no cuts yet, and the debate is open. In mid-October the prime minister said that defence funds "are not money taken from healthcare or schools". On 12 October, at a hearing, the Parliamentary Budget Office had explained that the derogation increases the deficit but does not create permanent spending room, and that from 2029, once the clause closes, the picture gets more complicated: a large part of the allocations concerns personnel and multi-year programmes that do not stop with the derogation. The Office asked the government to state already in the budget law how defence and energy will be financed after 2028 (Teleborsa; Il Fatto Quotidiano). In other words: today we pay with debt, tomorrow someone will have to pay the debt.

THE LABELLING TRICK

The 1.5% item is broad: infrastructure protection, networks, civil preparedness, innovation, industrial base. This is where some governments try to fit in spending already decided. In July 2025 the Italian government considered counting the bridge over the Strait of Messina, about 13.5 billion, and the new breakwater of the port of Genoa as infrastructure of military value (Il Post; Il Fatto Quotidiano). The US ambassador to NATO replied that the bridge has no military value; the transport ministry responded that the project is financed with state funds and not with defence funds (Il Post; Open).

The label can be used in two directions. You can call a civilian project "defence" to reach the percentage without spending more; or you can pass off as "civil security" spending that is in fact military. Either way the citizen no longer knows what he is paying for. L'Espresso wrote as much about Italy: for years defence spending has been judged by accounting targets, not strategic ones (L'Espresso).

TOO MUCH, OR ENOUGH?

This is the hardest question, and the numbers do not settle it. Measured in dollars at market exchange rates, spending by NATO's European members is almost triple Russia's. Measured at purchasing power parity, that is, taking into account that in Russia a soldier or a shell costs much less, the gap shrinks almost to nothing, and some argue that Russia spends more than all of Europe combined (Money.it; IISS, via Startmag). The two measures answer different questions, and whoever quotes only one has already chosen the conclusion.

What is missing, in any case, is the intermediate step in public form. NATO's capability targets, to which the Hague declaration ties the 3.5%, are classified (LaPresse). Secrecy about exactly what is lacking has understandable military reasons; but without at least a public version, no Parliament can judge whether the figure is right. The 5% is a spending target, not a result target. You can reach it by buying the wrong things, or miss it and have what you need.

LEGAL COMMENTARY

The EU budget and weapons. The Treaty on European Union prohibits financing from the common budget operations with military or defence implications (Article 41(2)). This is why the common European part of military aid to Ukraine goes through the European Peace Facility, which sits off-budget and is paid by the states, and why SAFE takes the form of loans. These are legitimate solutions, but they reduce the control of the European Parliament, which has co-decision powers over the ordinary budget.

Article 122. The clause is designed for severe difficulties in the supply of certain products or for exceptional circumstances. It was used for the pandemic and for the energy crisis. Using it for a long-term loan programme is the choice Parliament is challenging before the Court. If the Court upholds it, Article 122 will become the ordinary route for urgent decisions, and the definition of "urgent" will be given by the government of the day.

The derogation from the Pact. The national escape clause (Article 26 of EU Regulation 2024/1263) requires exceptional circumstances outside the state's control and spending that does not endanger debt sustainability in the medium term. The war in Ukraine can be an exceptional circumstance. A spending commitment running to 2035, with personnel and programmes lasting decades, is harder to fit into the word "temporary".

SYMMETRY TEST

The opposing argument. Some argue that defence and welfare are not alternatives but complements: without security Europe attracts less investment, grows less and in the end

cannot pay for the welfare state. Lorenzo Bini Smaghi is among those who make this case, noting that the Nordic countries, with the strongest welfare states, are also those that have increased military spending most (IEP Bocconi). It is a serious argument. But it holds only if growth really comes, and it does not say who pays in the meantime.

The threat is real. Russia has attacked a European country, spends 7.5% of GDP on defence, and Danish intelligence believes it could be ready for a large-scale war against Europe within five years (same IISS source). Those who criticise rearmament must say what they propose instead: it is not enough to say it costs too much.

The same yardstick for the accounts. If we denounce "creative accounting" when a government calls a bridge defence, we must also denounce it when a government calls weapons spending infrastructure, or when critics of rearmament set side by side figures that measure different things.

OUR JUDGMENT

This section expresses the site's position. It is separate from the facts set out above.

The problem is not that Europe defends itself. It is that the rules have been changed in one direction only. For weapons, the deficit is allowed, the procedure is shortened, Parliament is bypassed, the labels are widened. For schools, healthcare, justice and diplomacy the old rules apply, and in some cases deeper cuts. For the same need, the spending with the most convenient rules always wins.

Rearmament decided this way is disproportionate not because the threat is invented, but because the figure comes before the needs, and the costs are pushed forward, onto budgets that will have to repay the debt once the derogation is over. And it is dangerous because every euro spent without a plan is a euro that buys no security, and every year spent rearming without a diplomatic channel makes more likely the very war it claims to want to avoid.

WHAT CAN BE DONE

The proposals that follow are also the basis of a manifesto and a petition on this site.

1. **A social clause.** No increase in defence spending financed by cuts to healthcare, education, justice and civilian infrastructure. If a larger deficit is allowed for weapons, the same rule must protect essential services.
2. **Needs first, then the number.** Every government should present to Parliament a public version of the missing capabilities and their costs, and justify spending on that basis, not

on a percentage of GDP.

3. **Honest labels.** Separate, verifiable accounts for defence proper and for civil security. No civilian project counted as defence, no military spending hidden among infrastructure.
4. **Parliament decides.** No emergency procedures such as Article 122 for long-term programmes.
5. **Parity for diplomacy.** Conflict prevention is not cut more than the rest of the budget, and the EU equips itself with an envoy with a mandate for negotiations on Ukraine.
6. **We decide.** Defence spending is set on European needs, not under the threat of tariffs, and is not tied to trade deals. Purchases are chosen for what they are needed for, not for the flag of whoever makes them: neither to please Washington nor to favour European industry.

Those who want to act have some real levers: the national Parliament, which votes on the budget and gives direction to the government in the Council; petitions to the European Parliament (Article 227 of the Treaty on the Functioning of the EU); the vote.

WHAT TO WATCH

- The Court of Justice ruling on the European Parliament's challenge to SAFE.
- Negotiations on the 2028-2034 EU budget: funds for defence and for Global Europe.
- National budget laws for 2027: where the funding for defence is found.
- The Council's decision on the escape clause for Italy, expected by November.
- The national plans the allies must submit to NATO every year, and what they count in them.

Sources: LaPresse · European Commission · EU Council · Commission, via FastForward · SIPRI · La Notizia · Sky TG24 · Open · AFP, via Kuwait Times · Washington Examiner · Al Jazeera · Euronews · Osservatorio CPI · Italpress · Eunews · Il Post · La Notizia · LaPresse · Brussels Times · laRegione · Il Post · Italian Chamber of Commerce in Denmark · FIIA · IRC · Teleborsa · Il Fatto Quotidiano · Il Post · Il Fatto Quotidiano · Il Post · Open · L'Espresso · Money.it · IISS, via Startmag · IEP Bocconi

How far self-defence goes: Ukraine's attacks inside Russia, one by one

IN BRIEF

- The UN Charter recognises the right of a state under attack to defend itself (Article 51). This right does not stop at the border: against an ongoing armed attack, Ukraine may strike military objectives in Russia too, provided it does so in a necessary and proportionate way.
- Each individual attack, however, must also respect humanitarian law: military objectives only, no disproportionate harm to civilians, all feasible precautions.
- **Lawful** without serious doubt: attacks on air bases and bombers (operation "Spiderweb", June 2025), the incursion into the Kursk region (2024), the killing of officers on active duty, with a limit on the means.
- **Contested**: attacks on refineries and pipelines, and on tankers of the "shadow fleet", especially far from the front and under the flags of third countries.
- **Unlawful**: the killing of targeted civilians, such as Darya Dugina and the blogger Vladlen Tatarsky; indiscriminate attacks on border towns, if confirmed; the sabotage of Nord Stream, according to the German court that is trying a former Ukrainian officer.
- The same yardstick applies to Russia, which has caused the great majority of civilian casualties in this war: according to the UN, 96% of civilian casualties in the first half of 2026 were on Ukrainian territory.

In June 2025 more than a hundred drones, hidden in the trailers of trucks that had entered Russia, took off near four air bases, as far as the Arctic. In July 2026 Ukrainian naval drones hit 28 vessels in one night in the Sea of Azov. In less than two years, in and around Moscow, at least three Russian generals have been killed by bombs. Ukraine is taking the war inside Russia, and part of the European public wonders whether this is still defence. International law has an answer, but it is not a yes or a no: it is a list of conditions, to be applied case by case. How the war came about we reconstructed in "From 1990 to 2022", with the wrongs of all sides; the conclusion of that piece is also the starting point of this one: no Western mistake makes an invasion lawful, and therefore Ukraine has the right to defend itself. The question here is how far.

THE RULE

Two levels. International law looks at war on two planes. The first concerns *why* force is used: the UN Charter prohibits it (Article 2(4); see use of force) with one exception, self-defence against an armed attack (Article 51). The International Court of Justice has made clear that defence must be *necessary* and *proportionate* (Nicaragua, 1986; Oil Platforms, 2003). Proportionality is measured against the aim, stopping the aggression, and not blow by blow. Against an ongoing invasion that occupies about a fifth of Ukrainian territory, striking the bases from which missiles and bombers take off is hard to regard as disproportionate.

The second plane concerns *how*: humanitarian law, which applies to the aggressor and the victim alike. Only military objectives may be attacked, that is, objects which by their nature, location, purpose or use make an effective contribution to military action and whose destruction offers a definite military advantage (Additional Protocol I to the Geneva Conventions, Article 52). Even a military objective may not be attacked if the expected harm to civilians is excessive in relation to the advantage (Article 51). And all feasible precautions must be taken (Article 57). Russia and Ukraine are parties to these treaties, and the rules are customary law in any case.

Being attacked, then, does not give the right to do anything at all. But nor does it take the right away.

LAWFUL

Air bases and bombers. On 1 June 2025 Ukraine's security service (SBU) launched operation "Spiderweb". According to Al Jazeera, 117 drones smuggled into Russia were launched together near the airfields where strategic bombers were parked, including the Olenya base in the Arctic, about 2,000 kilometres from Ukraine (Al Jazeera). The SBU spoke of 41 aircraft hit; satellite images analysed by independent sources confirmed at least thirteen in the first days (The Insider). The bombers from which missiles are launched at Ukrainian cities are military objectives by nature. This is the clearest case.

The Kursk incursion. In August 2024 the Ukrainian army entered Russia's Kursk region and occupied part of it for some months, before Russian troops, helped by North Korean soldiers, took it back. Taking the war onto the aggressor's territory falls within self-defence. But whoever occupies territory, even briefly, has the obligations of an occupying power towards the civilians who live there (Fourth Geneva Convention). The judgment on those months depends on how they were treated.

Officers on duty. In December 2024 General Igor Kirillov, head of Russia's chemical defence troops, was killed in Moscow by a bomb hidden in a scooter; the SBU openly claimed it. There followed General Yaroslav Moskalik, in April 2025, and General Fanil Sarvarov, in December 2025, both by car bombs, and in June 2026 Damir Davydov, who ran the army's supply of missiles and artillery ammunition; Ukraine has not commented (Euromaidan Press; The Washington Times). A soldier on active duty is a legitimate target, even far from the front and outside working hours. The limit is the means. A bomb in a courtyard or a car park in a residential neighbourhood must avoid disproportionate harm to passers-by, and the law prohibits killing by feigning protected status, that is, by perfidy (Article 37 of Protocol I). A hidden bomb is not in itself perfidy. Trump's envoy for Ukraine, Keith Kellogg, said however that the killing of Kirillov violated the rules of war (Strat News Global).

CONTESTED

Refineries and pipelines. This is the broadest campaign. According to the International Energy Agency, at the end of August 2026 only five large Russian refineries had not yet been hit by Ukrainian drones (IEA). The legal question is whether a refinery is a military objective. According to the prevailing view, oil infrastructure is not one by nature: it can become one through use or purpose (Lieber Institute, West Point). A refinery that supplies the army becomes one: an analysis by Global Witness found that some of the refineries hit had supplied fuel to the Russian armed forces (Global Witness). In April 2024 the Parliamentary Assembly of the Council of Europe declared Russian refineries legitimate targets (same source). More doubtful is the case of a plant hit only because it earns money for Russia: American doctrine accepts striking objects that "sustain the war" by financing it; the International Committee of the Red Cross does not. The judgment must be made plant by plant.

The Druzhba pipeline adds a problem: it carries Russian oil to Hungary and Slovakia, the last EU countries still receiving it by this route. In July the two governments protested over three interruptions in less than two weeks caused by Ukrainian attacks (The Moscow Times). But the longest stoppage, from January, had been caused by a Russian attack on a station in western Ukraine (Reuters, via Devdiscourse). Hitting a plant in Russia that also serves allies does not make it unlawful, but the harm to third parties enters the proportionality calculation.

The tankers of the "shadow fleet". Since late 2025 Ukraine has been hitting with naval drones the tankers that carry Russian oil while evading sanctions: in the Black Sea, including off the Turkish coast, and in December 2025, for the first time, in the Mediterranean, where an SBU source called the ship "an absolutely legitimate target" (Kyiv Post). Putin spoke of piracy (Dawn). Here the law is stricter than on land. An enemy merchant ship may be attacked only if it has become a military objective; a ship flying the flag of a neutral country may, as a rule, be stopped

and captured, not sunk (San Remo Manual on International Law Applicable to Armed Conflicts at Sea, 1994, paragraphs 59-60 and 67). Many ships of the shadow fleet fly the flags of third countries. Hitting them only because they bring money to Moscow is the same controversial thesis of objects that "sustain the war", with an added risk for neutral countries and their crews. The position is stronger for the ships in the Sea of Azov carrying fuel to occupied Crimea, where Russian troops use it: on 11 July 2026 Ukraine hit 28 of them in one night (Ground News, summarising several sources).

UNLAWFUL

Targeted civilians. In August 2022 Darya Dugina, a nationalist commentator and daughter of the ideologue Alexander Dugin, was killed by a car bomb near Moscow. American officials said they believed the attack had been authorised by elements of the Ukrainian government (The Washington Times); Kyiv denied it. In April 2023 the military blogger Vladlen Tatarsky (Maxim Fomin) was killed by an explosive statuette in a café in St Petersburg (Kyiv Post). Someone who makes war propaganda is not a combatant. Killing a civilian for supporting the enemy is murder, and in war it is a crime.

Attacks on border towns. Russia's Belgorod region has been hit for years. On 20 July 2026 a Ukrainian drone hit a bus in Shebekino, killing five people, including a child (AFP, via BSS); in December 2023 Moscow reported at least 20 dead in central Belgorod, accusing Ukraine of using cluster munitions (SBS). Russian authorities speak of 250 civilians killed in Russia in the first half of 2026, but the UN is unable to verify this (Arab News). Not all these attacks are necessarily unlawful: a border town may host military objectives. But if an attack hits a bus or a square without a precise military objective, or with weapons that do not discriminate, it is a war crime. Judging requires independent investigations, which are not possible in Russia today.

Nord Stream. On 30 June 2026 the German federal prosecutor indicted a former Ukrainian officer, Serhii Kuznietsov, as head of the group that blew up the Baltic pipelines in September 2022. According to the indictment, he and the others were soldiers acting on behalf of Ukrainian state authorities, and the charge includes complicity in a war crime: the attack on civilian infrastructure (Eurointegration). The trial opened in Hamburg on 14 October (Euronews). Germany's Federal Court of Justice, in a decision on pre-trial detention, wrote that the pipeline was civilian infrastructure in neutral waters and could not be a military objective (Babel); the defence argues the opposite. Kyiv denies organising the sabotage. If the charge is proven, Nord Stream will be the clearest example of the limit of defence: a civilian asset, in the waters of third countries, owned in part by European companies. We analysed the question in detail in "Was Nord Stream a military objective?", in the series "Europe's choices".

IS THE ARMS SUPPLIER COMPLICIT?

In general, no. Helping a state exercising self-defence is not a wrongful act, because the defence is lawful. The supplier is responsible in two cases. The first: if it supplies weapons *knowing* they will be used to commit war crimes (Article 16 of the Articles on State Responsibility; Arms Trade Treaty, Articles 6 and 7, for states parties; EU Common Position 2008/944). The second: if it takes direct part in operations, for example by choosing targets. The restrictions some allies placed on the use of their long-range weapons against Russian territory were political choices, not legal obligations. According to Kyiv, most of the attacks described here, refineries included, are carried out with drones built in Ukraine.

AND THE PRICE OF ENERGY?

The attacks on refineries have reduced Russian fuel production and pushed Moscow to restrict diesel exports. According to Axios, the drone campaign is helping to push up world energy prices, already high because of the war with Iran (Axios). The effect concerns diesel above all. The cost of energy for European industry depends mainly on gas and electricity, and the EU has not imported Russian refined products since 2023. A cost to third parties does not make an attack on a military objective unlawful; it can, however, enter into the allies' political choices.

SYMMETRY TEST

The same rule for Moscow. If a refinery that supplies the army is a legitimate target, so is a Ukrainian fuel depot. If a power station that serves homes is a civilian object, it is one on both sides. In 2024 the International Criminal Court issued arrest warrants against four senior Russian commanders, including former defence minister Shoigu and chief of the general staff Gerasimov, for attacks on the Ukrainian power grid, considered directed against civilian objects or in any case disproportionate (see our page on ICC fugitives).

The proportions. The yardstick is the same, the numbers are not. According to the UN, in the first half of 2026, 96% of civilian casualties were recorded on Ukrainian territory, caused largely by Russian long-range missiles and drones; the same source reports Russian figures on casualties in Russia, without being able to verify them (Gwara Media). Saying that Ukraine commits wrongful acts does not reduce Russia's responsibility; saying that Russia commits many more does not erase Ukraine's.

The same Court for everyone. Ukraine rightly asks the International Criminal Court to judge Russian crimes. It has been a party to the Rome Statute since 1 January 2025. But at ratification it used a transitional provision, Article 124, to exclude for seven years the Court's jurisdiction over war crimes allegedly committed by its nationals: it is the first time a state has used it in

this way (Coalition for the ICC). Amnesty International has asked for the declaration to be withdrawn (Amnesty). It is a clause provided by the Statute, but it is also the point where the yardstick risks not being the same for everyone.

The sources. On many of these episodes the sources are partisan: the Russian authorities for casualties in Russia, the SBU for the results of its operations. We have flagged them as such, and where independent verification exists we have preferred it.

OUR JUDGMENT

This section expresses the site's position. It is separate from the facts set out above.

The question "can you defend yourself by attacking?" has a clear answer: yes. A country that has been invaded is not obliged to wait for missiles on its own territory, and striking the bases from which they are launched is defence in the strictest sense. Those who ask Ukraine not to touch Russian territory are asking it, in practice, to fight with one hand tied.

But the law that protects Ukraine from aggression is the same law that sets it limits. A bomb for a blogger, a drone on a bus, a civilian pipeline in neutral waters are not defence: they are the same logic Ukraine rightly denounces when Moscow applies it. Supporting Ukraine's defence and demanding that it respect humanitarian law are not two positions in conflict. They are the same position.

WHAT TO WATCH

- The Hamburg trial on Nord Stream and the possible extradition of the other suspects.
- Independent investigations, if they ever become possible, into the attacks in the Belgorod region.
- The position of flag states and of Turkey on attacks on tankers in or near their waters.
- Allies' statements on the use of the weapons they supply against Russian territory.
- Whether Ukraine withdraws its Article 124 declaration (see the symmetry test), and whether the International Criminal Court opens investigations into Ukrainian conduct.

Sources: Al Jazeera · The Insider · Euromaidan Press · The Washington Times · Strat News Global · IEA · Lieber Institute, West Point · Global Witness · The Moscow Times · Reuters, via Devdiscourse · Kyiv Post · Dawn · Ground News, summarising several sources · Kyiv Post · AFP, via BSS · SBS · Arab News · Eurointegration · Euronews · Babel · Axios · Gwara Media · Coalition for the ICC · Amnesty

4/4 · OPINION · 8 NOVEMBER 2026

Rearmament is a dish best served cold

On the night of 2 November the freezers of hundreds of supermarkets, in at least eleven European countries, rose to 50 degrees. Nobody forced a door: someone got into control software left exposed online, often old, sometimes with the factory password (the facts here). Two pro-Russian groups claimed responsibility, without verified evidence. Within a few days the episode was absorbed into a bigger story, the one about hybrid war and a Europe that must rearm. The countermeasures experts pointed to, however, were of another order: take the panels off the network, change the passwords, update the software. For the freezers, that was enough.

Let me start with what must be conceded, because it is true. The threat exists. The groups that claimed the attacks have a record, and two Western governments have documented their links with the Russian state. Ukraine has the right to defend itself, and helping it do so is lawful. Those who say that appointing a European envoy today to negotiate with Moscow would be a gift to the Kremlin have a serious argument: in May Russia threatened foreign diplomats in Kyiv, and Kaja Kallas maintains that Europe cannot be a neutral mediator, because it stands with the victim of aggression (Euronews). Perhaps she is right. Perhaps an envoy today would only get a refusal. I do not know. But I do know something else: the question is not whether Europe should defend itself, but how fast its two hands move, the one that arms and the one that negotiates.

And here is the point. The SAFE regulation, 150 billion in loans for defence, was proposed on 19 March 2025 and adopted on 27 May: about ten weeks (EU Council). To move fast, Article 122 of the Treaties was used, the emergency clause that leaves the European Parliament out, so much so that Parliament took the Council to the Court of Justice (La Notizia). The idea of an envoy for the negotiations had been under discussion since March 2025 (Politico, via Torre); in May 2026 ministers decided to postpone it until the demands to be made of Moscow are defined (Table.Media). For weapons, the emergency. For peace, the preconditions. The same imbalance shows in the budget: the proposal for 2028-2034 multiplies funds for defence and space by five (Commission, via FastForward), while the instrument that also funds conflict prevention faces a cut twice as deep as the rest (IRC). Emergency procedures, joint loans, budgets multiplied by five, a Parliament left out. And for diplomacy, a postponement.

Not all of Europe thinks the same way, and it is right to say so. France, Italy, Austria and Belgium have openly asked to open a channel with Moscow; Germany, Poland, the Baltic and Nordic countries prefer to increase the pressure (Euronews). In June the President of the European Council, António Costa, had his cabinet open a contact with the Kremlin: several

governments protested because they had not been consulted, and those contacts served only to open a line, without going into substance (Euronews). The problem is not that someone wants war. It is that rearmament has fast tools, ready to use, and diplomacy does not: appointing an envoy takes the unanimity of twenty-seven governments, and a single no is enough to stop everything. So, with every new alarm, the easiest response to approve is always the same. There is no need to imagine a conspiracy. It is enough to look at which door opens with the least effort.

On this site we wrote, in a manifesto, that before any choice of force it should be possible to show that the path of negotiation had truly been exhausted, not abandoned halfway ("We Will Not Look Away While War Is Chosen"). Today that proof does not exist: a line opened without a mandate is not a negotiation attempted. So far, others have done the negotiating. For the freezers, a new password was enough. For peace, a name and a mandate would be enough. After more than a year and a half, we are still looking for them.

Sources: Euronews · EU Council · La Notizia · Politico, via Torre · Table.Media · Commission, via FastForward · IRC · Euronews · Euronews

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N3R1-70 — I Will Not Look Away — Online version: https://iwillnotlookaway.org/s/en/series-peace-rearmament-full-text.html